

VC064717 VC064717

County: los-angeles

Division: Civil Law and Motion

Department: C

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Case Number: VC064717 Hearing Date: August 7, 2026 Dept: C

VALLEJO VS. DORAME

CASE NO.: VC064717

HEARING: 8/7/26

at 9:30AM

#7

TENTATIVE

RULING

I.

On the Court's own

motion, Judgment Creditor Ruthie Vallejo's

Unopposed Motion for Assignment Order and Order Restraining Judgment Debtor is ADVANCED from August 11, 2026 to today and GRANTED.

II.

Judgment Creditor

Ruthie Vallego motion to compel responses to Special Interrogatories (Set One)

and Requests for Production of Documents (Set One) is GRANTED. Judgment Debtor Robert Dorame is ordered to serve verified responses, without objections, within 20 days. No sanctions.

Judgment

Creditor to give notice.

MOTION FOR ASSIGNMENT ORDER

Judgment Creditor Ruthie Vallejo

(Vallejo) moves for an assignment order as to certain insurance proceeds due and payable to Judgment Debtor Robert Dorame (Dorame) from Metropolitan Life Insurance Company, and an order restraining Dorame relating to the insurance proceeds.

Background

Dorame is a party to a written agreement by which Dorame is entitled to a monetary payment from Metropolitan Life Insurance Company (Metlife) in the approximate amount of \$174,002.89 (Metlife Insurance Proceeds). (Williams Declaration, Exh. A.) Vallejo holds a valid and existing default Judgment in the present legal action against Dorame in the amount of \$114,730.89, plus legal interest at 10% per annum running from March 12, 2026. This amount is expected to increase as Vallejo proceeds with enforcement of the Judgment, including but not limited to the attorney's fees and costs relating to this motion. Vallejo filed and served a Notice of Lien upon the Metlife Insurance Proceeds in Dorame's probate court proceeding in San Bernardino Superior Court, Case No.: TRUVA2400139. (Williams Declaration, Exh. B.)

Dorame did not claim any exemptions within 30-days of the Notice of Lien, and thereby waived any and all exemptions as to the Metlife Insurance Proceeds. Dorame nonetheless refuses to voluntarily satisfy Vallejo's Judgment, and Metlife has stated its intent to interplead the Metlife Insurance Proceeds. Rather than endure the costs and delays associated with a separate interpleader action, Vallejo submits this motion for an assignment order directing Dorame to assign his portion of the Metlife Insurance Proceeds to Vallejo in an amount necessary to satisfy Vallejo's Judgment in full.

Assignment Order

In California, a judgment creditor may obtain an assignment order against a judgment debtor pursuant to Civil Procedure Code section 708.510(a), which provides, in part, "upon application of the judgment creditor . . . the court may order the judgment debtor to assign to the judgment creditor . . . all or part of a right to payment due or to become due, . . . including but not limited to" rents, commissions, and

royalties, among others. (Cal. Civ. Proc. Code § 708.510(a); see also Leg. Comm. Cmts. (“[Section 708.510] also provides an optional procedure for reaching assignable forms of property that are subject to levy, such as accounts receivable, general intangibles, judgments, and instruments.”).) “A right to payment may be assigned . . . only to the extent necessary to satisfy the money judgment.” (Id. § 708.510(d).)

Here, as shown by the written contract between Dorame and Metlife (Williams Decl., Exh. A.), Dorame has an expectation of payments due or to become due to Dorame in the approximate amount of \$174,002.89. Accordingly, the Court grants the assignment order, thereby assigning to Vallejo the right to payment from the Metlife Insurance Proceeds, to the extent necessary to satisfy Vallejo’s Judgment against Dorame.

Restraining Order

Code of Civil Procedure § 708.520 provides, in part, that “[w]hen an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned.” (Id. § 708.520(a).) A court may issue a restraining order based on “a showing of need for the order.” (Id. § 708.520(b).)

The underlying Judgment against Dorame is for fraud, breach of contract, and disgorgement of money from Dorame as an unlicensed contractor. As such, Vallejo has demonstrated the need for an order restraining Dorame from assigning or otherwise disposing of the right to payment of the Metlife Insurance Proceeds. (Code of Civil Procedure § 708.520.) Vallejo has also thereby demonstrated a need for an order directing Dorame to account monthly to Vallejo for any payments received as to the Metlife Insurance Proceeds, and directing Dorame to pay over to Vallejo any payments received by Dorame as to the Metlife Insurance Proceeds. (Id.)

Accordingly, the Court GRANTS an order directing Dorame to assign to Vallejo all payments due and/or to become due to Dorame from the Metlife Insurance Proceeds, enjoining Dorame from assigning or disposing of the right to such payments from the Metlife Insurance Proceeds, directing Dorame to account monthly to Vallejo as to any payments from the Metlife Insurance Proceeds, and directing Dorame to pay over to Vallejo any

payments as to the Metlife Insurance Proceeds.

MOTION TO COMPEL RESPONSES TO DISCOVERY

Judgment Creditor Ruthie Vallego moves to compel responses to Special Interrogatories (Set One) and Requests for Production of Documents (Set One) from Judgment Debtor Robert Dorame pursuant to CCP §§ 2030.290 and 2031.300. Vallego served Special Interrogatories (Set One) and Requests for Production of Documents (Set One) upon Dorame on March 12, 2026. (Williams Decl., ¶12.) Defendant failed to respond to the written discovery by the statutory deadline. (Id., ¶16.)

Good cause having been shown, the motions are GRANTED. Judgment debtor Robert Dorame is ordered to serve verified responses, without objections, within 20 days. No sanctions.